

NATIONAL SECURITY AGENCY

CENTRAL SECURITY SERVICE

Fort George G. Meade, Maryland 20755-6000

Serial: J9014C

15 APR 1986

This responds to your letter of 7 March 1986 in which you further narrowed your Freedom of Information Act (FOIA) request for records pertaining to Project Aquarius.

The document located in response to your request as stated in your 7 March letter has been reviewed by this Agency as required by the FOIA and has been found to be currently and properly classified in accordance with Executive Order 12356. This document meets the criteria for classification as set forth in subparagraphs 2, 4, and 8 of section 1.3 and remains classified TOP SECRET as provided in section 1.1 of Executive Order 12356. The document is classified because its disclosure could reasonably be expected to cause exceptionally grave damage to the national security. Because the document is currently and properly classified, it is exempt from disclosure pursuant to the first exemption of the FOIA (5 U.S.C. section 552(b)(1)).

In addition, this Agency is authorized by various statutes to protect certain information concerning its activities. We have determined that such information exists in this document. Accordingly,

those portions are also exempt from disclosure pursuant to the third exemption of the FOIA which provides for the withholding of information specifically protected from disclosure by statute. The specific statutes applicable in this case are Title 18 U.S. Code 798; Title 50 U.S. Code 403(d)(3); and Section 6, Public Law 86-36 (50 U.S. Code 402 "note").

No portion of the information is reasonably segregable.

Since your request has been denied, you are hereby advised of this Agency's appeal procedures.

Any person denied access to information may, within 45 days after notification of the denial, file an appeal to the NSA/CSS Freedom of Information Act Appeal Authority. The appeal shall be in writing addressed to the NSA/CSS FOIA Appeal Authority, National Security Agency, Fort George G. Meade, MD 20755-6000. The appeal shall reference the initial denial of access and shall contain, in sufficient detail and particularity, the grounds upon which the requester believes release of the information is required. The NSA/CSS Appeal Authority shall respond to the appeal within 20 working days after receipt.

In your letter, you take exception to the amount requested by this Agency for manpower and computer search fees to process your original request for all information on Project Aquarius. Please be advised that NSA search and duplication fees are computed in accordance with guidance

promulgated in sections 6-201 and 6-202 of DoD Directive 5400.7-R.

Sincerely,

JULIA B. WETZEL

Director of Policy

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